

| SERVICE AGREEMENT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
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| This <b>SERVICE AGREEMENT (SA)</b> is entered into on June 29, 2026, in BUTUAN CITY by and between:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| The <b>DEPARTMENT OF INFORMATION AND COMMUNICATIONS TECHNOLOGY</b> , an executive department of the Philippine Government existing by virtue of Republic Act (RA) No. 10844, otherwise known as the “ <i>DICT Act of 2015</i> ,” with principal office address at <i>DICT Regional Office 13, 8600, Butuan City</i> , represented by its Regional Director, <b>MARIO P. CUÑADO</b> , as evidenced by <b>Department</b> Order No. 147 s. 2023, dated December 27, 2023, and to be referred to as the “ <b>FIRST PARTY</b> ,”                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| -and-                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>MIKKO M. LUMPOT</b> , citizenship, age, status, with residential address at <b>PUROK-4, BRGY. MABUA, SURIGAO CITY, SURIGAO DEL NORTE</b> , and <b>TIN 659-417-474-000</b> , to be referred to as the “ <b>SECOND PARTY</b> ,”                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| The <b>DICT</b> and <b>MIKKO M. LUMPOT</b> shall be collectively referred to as “Parties” and individually as a “Party.”                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>WITNESSETH: That,</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>WHEREAS</b> , CSC-COA-DBM Joint Circular No. 1, s. 2025 prescribes the guidelines governing the engagement of Contract of Service (COS) and Job Order (JO) workers in government and requires government agencies to ensure that such engagements are undertaken in accordance with applicable laws, rules, regulations, and authorized budgetary allocations;<br><b>WHEREAS</b> , the <b>FIRST PARTY</b> ensures that engaging COS/JO would contribute to the attainment of its objectives and shall not adversely affect the implementation of its regular programs/projects and the achievement of its targets;<br><b>WHEREAS</b> , the <b>FIRST PARTY</b> is currently undergoing organization assessment and reconfiguration of its current organizational set-up and capability considering the increase in scope and evolving future demands;<br><b>WHEREAS</b> , the <b>FIRST PARTY</b> is in need of the services of the <b>SECOND PARTY</b> on a COS/JO basis under the DICT - Surigao del Norte Provincial Office;<br><b>WHEREAS</b> , the <b>SECOND PARTY</b> shall be rendering services/performing functions not performed by the regular personnel of the <b>FIRST PARTY</b> ;<br><b>WHEREAS</b> , the <b>SECOND PARTY</b> has signified his/her intention to which the <b>FIRST PARTY</b> has accepted, to provide the services needed by the latter;<br><b>WHEREAS</b> , the <b>SECOND PARTY</b> hereby possesses the education, experience and skills required to perform the job as described herein;<br><b>NOW, THEREFORE</b> , for and in consideration of the foregoing premises, the Parties agree as follows:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| I. POSITION, DUTIES AND RESPONSIBILITIES OF THE SECOND PARTY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <div>1. The <b>FIRST PARTY</b> engages the services of the <b>SECOND PARTY</b> as a <b>Time-Based Contract of Service/Job Order Worker</b> to perform the functions of <b>INFORMATION OFFICER I</b>.<br/>2. The <b>SECOND PARTY</b> shall render a total of forty (40) working hours per week, exclusive of meal breaks, in accordance with the work arrangement approved by the <b>FIRST PARTY</b> and subject to applicable laws, rules, regulations, and <b>DICT</b> policies. The <b>SECOND PARTY</b> shall comply with the attendance, work arrangement, monitoring, and reporting requirements prescribed by the <b>FIRST PARTY</b>, including such documentary requirements as may be necessary for the verification of services rendered and payment of the corresponding Service Fee.<br/>3. The <b>SECOND PARTY</b> shall perform and complete the outputs, deliverables, and services specified in Annex “A” (Terms of Reference), in accordance with the prescribed timelines, performance standards, and other requirements established by the <b>FIRST PARTY</b>, subject to applicable laws, rules, regulations, and <b>DICT</b> policies.<br/>4. The <b>SECOND PARTY</b> shall comply with the documentary and reporting requirements prescribed by the <b>FIRST PARTY</b>, including the submission of the required Daily Time Record and Accomplishment Report and such other supporting documents as may be necessary for the verification, acceptance, and payment of the corresponding Service Fee.<br/>5. The <b>SECOND PARTY</b> shall perform the required services under the work arrangement approved by the <b>FIRST PARTY</b>, which may include onsite, hybrid, work-from-home, or other flexible work arrangements subject to operational requirements and existing prevailing CSC/COA/DBM rules and procedures and <b>DICT</b> policies.<br/>6. The <b>SECOND PARTY</b> shall disclose to the First Party any business, professional employment or any similar activity in which she may be engaged prior to or at any time in the course of the effectivity of this Contract.<br/>7. The <b>SECOND PARTY</b> shall not engage in any activity that is incompatible with those purposes, principles and proper discharge of her tasks.<br/>8. The <b>SECOND PARTY</b> shall be personally responsible and accountable for any and all resulting damages to the equipment/machine under her care through her fault or negligence, holding the <b>FIRST PARTY</b> free and harmless thereof.</div>                                                                                                                                                                                 |
| II. DURATION OF THE CONTRACT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <div>1. This Contract shall take effect on <b>JULY 1, 2026</b> to <b>DECEMBER 31, 2026</b> or unless earlier terminated by either party through a written notice at least thirty (30) days prior to the intended date of termination.</div>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| III. COMPENSATION AND BENEFITS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <div>1. For the services rendered, the <b>SECOND PARTY</b> shall receive a Basic Service Fee of <i>Thirty-One Thousand Seven Hundred Five (Php31,705.00)</i>, together with a premium equivalent to twenty percent (20%) in the amount of <i>Thirty-Eight Thousand Forty-Six Pesos Only (Php38,046.00)</i> thereof.<br/>2. The amount due to the <b>SECOND PARTY</b> as Service Fee shall be payable in two (2) equal payments, every fifteenth (15) and thirtieth (30th) of the month, through bank deposit, supported by the <b>SECOND PARTY</b>’S compliance with the documentary and reporting requirements prescribed by the <b>FIRST PARTY</b>, and subject to applicable taxes, and authorized deductions. Payment thereof shall be on a "no work, no pay" basis.<br/>3. The 20% premium is intended to cover the <b>SECOND PARTY</b>’s contributions to the Social Security System (SSS), Philhealth, and Pag-IBIG Fund under applicable membership arrangements, subject to existing laws, rules and regulations. The <b>SECOND PARTY</b> shall maintain active membership and comply with the contribution requirements of these agencies. Subject to the execution of a written consent by the <b>SECOND PARTY</b>, the <b>FIRST PARTY</b> may deduct the amount of the voluntary monthly contributions from the 20% premium due to the <b>SECOND PARTY</b>. Otherwise, <b>SECOND PARTY</b> shall have the duty to provide proof of payment of his/ her respective voluntary monthly contributions to the aforementioned funds.<br/>4. The <b>SECOND PARTY</b> may be granted Compensatory Time Off (CTO) or Overtime Pay for authorized services rendered beyond regular working hours, subject to applicable work arrangement approved by the <b>FIRST PARTY</b>, laws, rules, regulations, and <b>DICT</b> policies.<br/>5. The <b>SECOND PARTY</b> may be reimbursed for authorized and reasonable expenses incurred in connection with approved official local travel, subject to the availability of funds and compliance with applicable budgeting, accounting, auditing, and <b>DICT</b> policies. Reimbursement shall be made only upon submission of complete supporting documents and approval of the corresponding claim in accordance with applicable laws, rules, regulations, and <b>DICT</b> policies.<br/>6. The <b>SECOND PARTY</b> may be granted Wellness Leave, subject to applicable laws, rules, regulations, and <b>DICT</b> policies.<br/>7. This Agreement shall be funded from the General Appropriations Act (GAA) of 2026 under <b>CYBERSECURITY BUREAU</b>, subject to the availability of funds for the fiscal year covering the effectivity of this Agreement.</div> |
| IV. ATTENDANCE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <div>1. The <b>SECOND PARTY</b> shall observe the attendance, work schedule, monitoring, and reporting requirements prescribed by the <b>FIRST PARTY</b> and shall comply with the attendance recording and verification mechanisms implemented by <b>DICT</b>. The specific rules governing attendance, working hours, compressed workweek, alternative work arrangements, remote work, and similar personnel arrangements shall be subject to applicable laws, rules, regulations, and <b>DICT</b> policies.</div>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| V. GENERAL PROVISIONS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <div>1. Nothing in this Agreement shall be construed as creating an employer-employee relationship between the Parties. The <b>SECOND PARTY</b> shall not be considered a regular or plantilla employee of <b>DICT</b>, and services rendered under this Agreement shall not be credited as government service. Furthermore, this contract does not guarantee permanent employment or regularization. The <b>SECOND PARTY</b> may, however, apply and be considered for open plantilla positions within the <b>DICT</b>, subject to applicable Civil Service laws, rules, and regulations.<br/>2. The <b>FIRST PARTY</b> may, in its discretion, temporarily detail the <b>SECOND PARTY</b> to another place of assignment, without any change in the emoluments and other monetary privileges, taking into consideration the latter’s background and qualifications.<br/>3. Except as otherwise authorized under applicable laws, rules, regulations, administrative issuances, and <b>DICT</b> policies, the <b>SECOND PARTY</b> shall not be entitled to benefits granted exclusively to regular, permanent, temporary, or plantilla personnel, including but not limited to <b>PERA</b>, <b>RATA</b>, Mid-Year Bonus, Year-End Bonus, Cash Gift, <b>PEI</b>, and similar benefits.<br/>4. The <b>SECOND PARTY</b> warrants that the <b>SECOND PARTY</b> is of good moral standing, has not been previously dismissed from government service by reason of an administrative or criminal case, and possesses the qualifications, education, experience, skills, and expertise necessary to perform the services specified in the Terms of Reference attached hereto (Annex “A”).<br/>5. The <b>FIRST PARTY</b> may require the <b>SECOND PARTY</b> to undergo authorized drug testing in accordance with applicable laws, rules, regulations, and <b>DICT</b> policies governing a drug-free workplace.<br/>6. The <b>SECOND PARTY</b> shall perform the services under this Agreement with professionalism, efficiency, integrity, and due diligence, in accordance with applicable laws, rules, regulations, and <b>DICT</b> policies. The performance of the <b>SECOND PARTY</b> shall be evaluated by the immediate supervisor or such other official as may be designated by the <b>FIRST PARTY</b>, based on established performance criteria and agreed deliverables. To remain eligible for continued engagement under this Agreement, the <b>SECOND PARTY</b> must obtain a performance rating of at least Satisfactory. Failure to attain a Satisfactory rating may constitute a ground for the termination or non-renewal of this Agreement.</div>                                                |

- The SECOND PARTY explicitly commits and binds him/herself to strictly adhere to all existing workplace policies, operational guidelines, safety protocols, administrative orders, and internal rules and regulations implemented by the FIRST PARTY.
- While the SECOND PARTY maintains professional independence in the manner of executing the agreed deliverables, s/he shall conform to the ethical standards, behavioral decorum, and security regulations expected within the premises of the FIRST PARTY.
- For the duration of this Agreement and for a period of one (1) year from its expiry or termination, the SECOND PARTY shall be prohibited from being engaged or otherwise employed by any private person or entity that has an existing contract with the FIRST PARTY.
- The SECOND PARTY may be authorized to undertake local official travel when necessary for the performance of the duties and responsibilities specified in Annex “A”, subject to applicable laws, rules, regulations, and DICT policies. The SECOND PARTY shall not undertake official foreign travel at government expense.
- The SECOND PARTY may be authorized to participate in local training programs, seminars, conferences, and similar activities at government expense, subject to the approval of the appropriate authority and compliance with applicable laws, rules, regulations, and DICT policies.
- All intellectual property rights, including patents, copyrights, utility models, trademarks, software, databases, reports, studies, designs, and other works or outputs developed, created, conceived, or produced by the SECOND PARTY in connection with the performance of services under this Agreement shall belong exclusively to the FIRST PARTY. The SECOND PARTY hereby assigns and transfers to the FIRST PARTY all rights, title, and interest thereto without additional compensation beyond the Service Fee provided under this Agreement.
- This Agreement shall be governed by all applicable laws, rules, regulations, administrative issuances, and DICT policies, including such amendments, supplements, or successor issuances as may be adopted during the effectivity of this Agreement.

VI. NON-DISCLOSURE OF CONFIDENTIAL INFORMATION

- The SECOND PARTY shall keep strictly confidential and shall not disclose, publish, reproduce, use for personal benefit, or make available to any third party any information, data, records, documents, materials, systems, credentials, source codes, reports, studies, communications, or other information obtained or accessed in connection with the performance of services under this Agreement that is proprietary, confidential, restricted, or otherwise not publicly available. In case of doubt, such information shall be treated as confidential unless it falls under any of the following exceptions:
  - Information lawfully obtained by the SECOND PARTY from an independent source without breach of any confidentiality obligation;
  - Information that is publicly available through no act or omission of the SECOND PARTY;
  - Information required to be disclosed pursuant to law, regulation, court order, or lawful directive of a competent authority; or
  - Information that DICT expressly authorizes in writing to be disclosed.
- The SECOND PARTY shall promptly return to the FIRST PARTY all Confidential Information received from the FIRST PARTY within seven (7) days, including but not limited to copies, summaries, excerpts, extracts or other reproduction thereof, upon expiration and/or upon termination of this Agreement. The SECOND PARTY shall also delete all personal copies of said information and shall promptly certify that the same have been destroyed in his/her personal effects.
- The obligations under this provision shall survive the expiration, termination, or completion of this Agreement. In the event of a breach, DICT may exercise all rights and remedies available under applicable laws, rules, regulations, administrative issuances, and DICT policies, without prejudice to any other remedy available under this Agreement.

VII. TERMINATION OF AGREEMENT

- Termination due to Expiration or Completion.** This Contract shall automatically terminate without need of prior notice upon the arrival of the expiration date specified in Section [Insert Section Number for Duration], or upon the full completion of the specific project, task, or deliverable for which the Job Order worker was engaged.
- Termination by Either Party.** Either Party may terminate this Agreement prior to its expiration by providing written notice to the other Party at least thirty (30) calendar days before the intended date of termination, unless a shorter notice period is mutually agreed upon in writing by the Parties.
- Termination by the FIRST PARTY.** The FIRST PARTY may terminate this Agreement immediately upon written notice to the SECOND PARTY for any of the following grounds:
  - Unsatisfactory Performance:** Failure of the Job Order worker to meet the agreed-upon outputs, deliverables, or standards of performance specified in the Terms of Reference (TOR) or Service Agreement.
  - Neglect of Duty or Inefficiency:** Habitual absence, tardiness, or failure to perform the assigned tasks without justifiable cause.
  - Violation of Contractual Terms:** Any breach of the terms and conditions stipulated in this SA, including unauthorized disclosure of confidential agency information.
  - Misconduct or Prohibited Behavior:** Commission of acts detrimental to the public service, including but not limited to dishonesty, insubordination, discourtesy in the course of official duties, or being under the influence of alcohol or illegal drugs during work hours.

VIII. TURN OVER AND CLEARANCE REQUIREMENTS

- Upon the expiration, termination, or other cessation of this Agreement, the SECOND PARTY shall, on or before the effective date of separation or in accordance with a turnover schedule mutually agreed upon by the Parties, turn over to the FIRST PARTY all records, reports, documents, data, software, source codes, credentials, access keys, identification cards, equipment, and other property, materials, or assets of DICT in the possession, custody, or control of the SECOND PARTY. The SECOND PARTY shall likewise provide such assistance and information as may be reasonably necessary to facilitate the orderly transition of duties and responsibilities.
- Within thirty (30) calendar days from the expiration, termination, or other cessation of this Agreement, the SECOND PARTY shall secure and submit a duly accomplished Clearance from All Accountabilities in accordance with applicable DICT policies. Submission of the approved Clearance shall be required prior to the release of any remaining Service Fee or other amounts due under this Agreement.

IX. DISPUTE RESOLUTION

- Any conflict, dispute or controversy arising out of or in connection with this Agreement or the interpretation, construction, performance, or breach of any provision hereof shall be initially settled amicably within thirty (30) days from notice by the Parties. Either Party may initiate amicable discussions by sending a written notice to the other Party, specifying the alleged dispute and the proposed schedule thereof, which shall not be more than five (5) days from the date of notice.
- If the parties fail to reach an amicable settlement within thirty (30) days from written notice, any conflict, dispute or controversy arising out of or in connection with this Agreement or the interpretation, construction, performance, or breach of any provision hereof shall be finally settled through mediation and shall be governed by, construed, and enforced in accordance with the laws of the Philippines.

IN WITNESS WHEREOF, the Parties have hereunto set their hands this 29th day of June 2026 at BUTUAN City, Philippines.

|                                      |                                         |
|--------------------------------------|-----------------------------------------|
| MARIO P. CUÑADO<br>Regional Director | MIKKO M. LUMPOT<br>TIN: 659-417-474-000 |
| OBRs:                                |                                         |
| AMOUNT:                              |                                         |

ACKNOWLEDGEMENT

Republic of the Philippines )  
 ) S.S.

Before me, a Notary Public for and in Quezon City, on the date and at the place first above written, personally appeared the following:

| Name            | Gov't Issued ID                   | Place Issued | Date Issued |
|-----------------|-----------------------------------|--------------|-------------|
| MARIO P. CUÑADO | UMID ID<br>CRN:011-1936-3423-0    |              |             |
| MIKKO M. LUMPOT | Driver's License<br>K07-25-000886 |              |             |

Known to me and to me known to be the same persons who executed the foregoing **Service Agreement** consisting of three (3) pages including this page on which the Acknowledgement is written, and they acknowledged to be the same is their free and voluntary act and deed as well as the free and voluntary act and deed of the organizations herein represented.

IN WITNESS WHEREOF, I have hereunto set my hand and seal on the date above written.

\_\_\_\_\_  
NOTARY PUBLIC

Doc. No. \_\_\_\_;  
Page No. \_\_\_\_;  
Book No. \_\_\_\_;  
Series of 2026.